

24STCV24999 24STCV24999

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV24999 Hearing Date: August 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

24, 2026 TRIAL

DATE: September 8, 2026

CASE: Brayan

Romero v. Roberto Menjivar, et al.

CASE NO.: 24STCV24999

MOTION

TO COMPEL DEFENSE MEDICAL EXAMINATION, REQUEST FOR

MONETARY

SANCTIONS IN THE AMOUNT OF \$3,647.50

MOVING PARTY: Defendants Roberto Menjivar, Jennifer Cammack, and AJ

Portables, Inc.

RESPONDING PARTY: Plaintiff Brayan Romero

I. INTRODUCTION

This is a motor vehicle negligence

action. On June 14, 2026, Defendants, Roberto Menjivar, Jennifer

Cammack, and AJ Portables, Inc., filed this motion to compel Plaintiff, Brayan Romero, to attend a defense medical examination with neurosurgeon Luke Macyszyn, M.D. Defendants seek sanctions against Plaintiff and his counsel of record.

On August 13, 2026,
Plaintiff filed an opposition.

On the same day,
Defendants filed a supplemental brief to shorten the demand to conduct Plaintiff's examination to September 1, 2026. Defendants also reaffirm their request for sanctions.

On August 17, 2026,
Defendants filed a reply.

II. LEGAL STANDARD

In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff where: (1) the examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive; and (2) the examination is conducted at a location within 75 miles of the residence of the examinee. (Code Civ. Proc., § 2032.220(a).) A defendant may make a demand for physical examination without leave of the court after that defendant has been served or has appeared (Code Civ. Proc., § 2032.220(b)), and the physical examination demanded shall be scheduled for a date at least 30 days after service (Code Civ. Proc., § 2032.220(d)).

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Code of Civil Procedure

section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

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If sanctions are sought, Code of Civil Procedure section 2032.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.۰۰۰۰

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Sanctions may also be imposed against counsel if a party seeking sanctions against an attorney offers sufficient evidence of a misuse of the discovery process, and the attorney fails to demonstrate that he or she did not recommend that conduct. (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 81 (Kwan Software).)۰۰

III. DISCUSSION

The motion is meritorious. Defendants properly served the demand to conduct Plaintiff's medical examination and Plaintiff failed to serve a timely written objection. Plaintiff failed to appear at the examination. To date, Plaintiff has not appeared for any examination in this personal injury matter.

In opposition, Plaintiff argues the motion should be denied because Defendants demand for examination was defective and was not served on his counsel. The argument is disingenuous. Plaintiff unwittingly admits that past and current counsel was served with the demand on March 10, 2026. (See Opp., p. 3:3-16.) Plaintiff then served an untimely objection on May 21, 2026. (See Code Civ. Proc., § 2032.230(b).) To the extent Plaintiff relies on a notice of change of counsel, that reliance is misplaced for at least three reasons. First, the notice was filed with the court on March 13, 2026—after the demand was served on Plaintiff's counsel. Second, the notice was not served on Defendants until May 2026. Third, the notice indicates only that the name of the firm of

Plaintiff's counsel had changed, as well as the handling attorney. The handling attorneys were members of the previous law firm. Given the foregoing, Plaintiff was properly served with the notice of demand.

Plaintiff further argues the motion should be denied for Defendants' failure to meet and confer in good faith. The argument lacks merit. The court has reviewed the filings in connection to this matter and finds Defendants satisfied the meet-and-confer requirement.

Monetary
Sanctions

Defendants seek sanctions against Plaintiff and his counsel. As the court has granted this motion, sanctions are warranted. Pursuant to Kwan Software, imposition of monetary sanctions against counsel is also proper unless counsel shows that he or she did not counsel the discovery abuse. (Kwan Software, supra, 58 Cal.App.5th at p. 81.) Plaintiff's counsel does not meet their burden. Accordingly, sanctions are imposed against Plaintiff and his counsel in the requested sum of \$3,647.50.

IV. CONCLUSION

Based on the foregoing, the motion is GRANTED. The court orders as follows:

1. The court shortens time on Defendants' demand for examination pursuant to Code of Civil Procedure section 2032.220(d);
2. Defendants are granted leave to complete discovery proceedings closer to the trial date pursuant to Code of Civil Procedure section 2024.050;
3. Plaintiff is ordered to appear for examination on September 1, 2026 as outlined in Defendants' proposed order;
4. Plaintiff and his counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$3,647.50.

Moving party to give notice.

Dated: August 24, 2026

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¿ Brock T. Hammond

¿ Judge of the Superior Court¿